

Leave and Income Replacement Administration Handbook

The Research Foundation for SUNY

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Introduction

Purpose

This leave administration handbook is a comprehensive document designed to provide the leave administration policies for the Research Foundation for SUNY (RF). This information outlines leave administration procedures, guidance, and requirements for the various types of leave and income replacement benefits available to Research Foundation employees.

Please see the [Paid Time Off and Accrual Handbook](#) for information regarding the RF's Paid Time Off policies, procedures, and guidance.

Audience

This handbook is intended to be used by RF administrators who are responsible for administering leave of absence and income replacement benefits.

Overview

The RF allows eligible employees to earn PTO accruals to use when they are absent from scheduled workdays. The purpose of PTO is to protect employees from income loss while they are not at work. Additionally, in some cases, as outlined in these documents, the RF provides paid or unpaid leave to employees.

To ensure efficient, fair, and consistent administration of leave, the RF has established policies, procedures, and guidelines to address a variety of issues when employees are absent from scheduled workdays.

General Requirements

Generally, employees requesting a leave of absence must:

- request in advance from their manager when possible
- abide by requirements for all paid and unpaid leave and leaves of absence as outlined in this handbook

Types of Leave and Income Replacement Benefits

Employees may be eligible for the following types of leave, each of which are discussed in more detail in other sections of the handbook:

- jury duty
- court appearances
- cancer screening
- voting time
- blood donation
- bone marrow donation
- crime victims
- volunteer emergency responder
- prenatal leave
- leave of absence: child care
- leave of absence: personal
- leave for service in the uniformed services
- leave for spouses of service members
- leave under the Family Medical Leave Act (FMLA)
- New York State Paid Family Leave (PFL; also provides income replacement benefits)

Employees may be eligible for the following income replacement benefits, as appropriate:

- short-term disability
- workers' compensation

The information contained in this handbook is not a contract and does not alter the at-will employment relationship. This handbook supersedes all prior handbooks and written or verbal guidance, except as provided herein. The RF reserves the right to add, supplement, modify or abolish any personnel policies or handbooks without notice and in its sole discretion. **When applying the policies and procedures to employees covered under a Collective Bargaining Agreement ("CBA"), you should also refer to the CBA applicable to the employee's job title and work location for additional terms and conditions of employment.**

Special Requirements for Employees Working in New York City (NYC)

Employees working in NYC may request certain benefits as outlined below based on the regulations passed in NYC.

NYC Temporary Schedule Change

Employees working in New York City (Bronx, Brooklyn, Manhattan, Queens and Staten Island) may request a temporary schedule change for a range of reasons, including:

- to care for their own health needs or those of a family member;
- to see assistance or take safety measures if the employee or family member is a victim of domestic violence, unwanted sexual contact, stalking, human trafficking, or workplace violence;
- to care for a child or for a family or household member with a disability;
- to attend housing and public benefits appointments and hearings;
- to stay home when the government declares a public disaster

A temporary schedule change is a limited alteration to the hours or times that an employee is expected to work, or to the locations where the employee is expected to work. This may include, using paid time off, working remotely, swapping, or shifting work hours, or using short-term unpaid leave.

A family member for purposes of the NYC Temporary Schedule Change Law is:

- Child (*biological, adopted, or foster child; legal ward; child of an employee standing in loco parentis*)
- Spouse
- Registered domestic partner
- Parent (*biological, foster, stepparent, or adoptive parent; the employee's legal guardian; or a person who took on the responsibilities of being a parent when the employee was a minor*)
- Child or parent of an employee's spouse or domestic partner
- Grandchild or grandparent
- Sibling (half, adopted, or stepsibling)
- Any other individual related by blood to the employee
- Any other individual whose close association with the employee is the equivalent of a family relationship

Employee Requests

Employees working in NYC may request a temporary schedule change including:

- Changing the time or location of their work shift,
- Working remotely, or
- Swapping shifts with another employee.

Response to Request

The supervisor must respond as soon as practicable after receiving an employee's initial request. Once the employee has submitted a request in writing, the operating location must provide a written response as soon as practicable. The RF will not retaliate against employees for requesting a temporary schedule change, regardless of whether the request is approved or denied.

If an employee's request for a temporary schedule change is not approved, they may be eligible paid time off, including Safe Leave, please see the [Paid Time Off and Accruals Handbook](#).

NYC – Workplace Accommodations: Cooperative Dialogue

Special accommodation rules apply to New York City-based employees. For those employees, the RF will engage in a “cooperative dialogue” with individuals who may be eligible for a reasonable accommodations under the NYCHRL.

Employees may request accommodations relating to:

- Religious needs;
- A disability;
- Pregnancy, childbirth or a related medical condition or
- Such person’s needs as a victim of domestic violence, sex offenses or stalking.

The term “cooperative dialogue” means the process by which an employer and individual who may be eligible for an accommodation exchange information to identify the individual’s needs, their requested accommodation(s) and potential alternatives to the requested accommodation(s).

For those employees, the RF will provide the individual requesting an accommodation with a written determination identifying any accommodation that has been either granted or denied. A determination that no reasonable accommodation would enable the person to satisfy the essential requirements of the job may only be made after the parties have engaged, or the employer has attempted to engage, in a cooperative dialogue.

An individual need not request an accommodation to trigger the obligation to engage in cooperative dialogue with the employee. The obligation arises when the employer has notice that an accommodation may be required (e.g., a person is in a wheelchair or walking with a guide dog, etc.).

Once there is notice, the following must occur:

- **Cooperative Dialogue:** Any time an employee makes a request for an accommodation based upon any of the needs identified above or there is notice that an accommodation may be required, the RF must engage in (or at least attempt to engage in) “cooperative dialogue” within a reasonable time after the request is made (i.e., within 3-5 working days of the request). This includes gathering information to identify the individual’s needs, including requesting medical documentation from the employee to support the need for the requested accommodation (if applicable), communicating with the employee, exploring whether the requested accommodation is reasonable, and if not, considering potential alternatives to the requested accommodation that would allow the individual to perform the essential functions of their job. The steps should be documented as the cooperative dialogue occurs, including dates, information requested/received, all communications with the employee, difficulties posed to the employer, etc.
- **Make a Determination:** Make a determination as to whether the requested accommodation is granted or denied. This may only be done after the RF has engaged in a cooperative dialogue with the employee, or attempted to engage in a cooperative dialogue within a reasonable time after the request is made.
- **Written Documentation:** Provide a written determination to the employee identifying any accommodation that has been granted or denied [NYC Accommodation Form for Grant or Denial](#).

Leave

This section of the handbook describes the various types of leave and income replacement benefits available to RF Employees.

Please see the [Leave of Absence/Income Replacement - Quick Reference Table](#) which outlines eligibility and required forms for each type of leave and income replacement benefit.

Requesting Leave

An employee requesting leave must provide notification in advance, as they become aware of the need to request a leave of absence.

Duration of Leave

Generally, leave (whether paid or unpaid) may not extend an employee's employment termination date, if their employment would have ended at the end of the current appointment period. Employees who are on a job protected leave will be evaluated on a case-by-case basis.

Jury Duty

The RF recognizes that jury duty is a civic obligation of all citizens. RF employees, who should request jury duty leave from their manager, will receive the necessary time off with full pay to fulfill that obligation. Documentation, such as a jury duty voucher, and advance notice of service are required.

An employee is expected to report to work on days when their attendance in court is not required. If an employee is not required to attend a full day in court, the employee is expected to report for work before or after court attendance or charge the time not in court to accrued PTO (excluding sick accruals).

Court Appearances

The RF will provide time off to an employee who notifies the RF of the need to be absent:

- due to court appearances as a victim in a criminal matter or a subpoenaed or otherwise ordered witness in a criminal matter,
- for consultation(s) with the district attorney, or
- to exercise rights as provided in the criminal procedure law, the family court act, and the executive law, including obtaining a restraining order.

Employees are expected to use appropriate accruals.

In all other cases, including if an employee is an expert witness, a party to the action (plaintiff/defendant, a subpoenaed or otherwise ordered witness), employees (whether exempt or non-exempt) must get prior approval for time off and will be expected to use appropriate accrued PTO.

In all cases, employees must provide as much advance notice as is practicable.

Please also see the *Safe Leave* section of the [Paid Time Off and Accruals Handbook](#) for information on which Court Appearances may also qualify under *Safe Leave*.

Cancer Screening Leave

The RF allows employees to take up to a maximum of 4 hours of paid leave, including travel time, per calendar year to undertake screening for any type of cancer without deducting any other accrued time from the employee (ex. sick, personal, or vacation).

The RF may require verification from the health care provider stating the purpose and length of requested leave.

Voting Time Leave

The RF allows all employees paid time off to vote in federal, state or local elections, both primary and general elections. Employees may take a reasonable amount of time at the beginning or end of their shift to allow them to vote, but not more than two hours without loss of pay. Time off to vote must be taken at the beginning or end of the

employee shift unless otherwise mutually agreed upon between the employee and their supervisor. An employee who needs time off to vote should notify their supervisor no more than 10 or no less than two working days before election day that the time off is required. The RF is not required to grant this time off, if an employee has four consecutive nonworking hours when the polls are open as the employee would then have sufficient time outside of work to vote (ex., the employee's shift ends at 4 p.m., and the polls are open until 9 p.m.). Campuses are required to post a notice setting forth the provisions of the time-off-to-vote law in a conspicuous place no less than 10 working days before every election. The [New York State Election Law Notice](#) must remain posted until the polls are closed on Election Day. The [Posting Notices](#) procedure provides additional information.

Please note: Employees must work on the date of the election to be eligible for the voting time leave. For example: If the employee is taking the Election Day floating holiday on Election Day, they would not be eligible for Voting Time Leave, and would charge the holiday accrual for the day.

Blood Donation Leave

Employees will be paid for a reasonable amount of time for blood donation that occurs at or in connection with the operating location and will not have to charge PTO.

The RF provides unpaid leave to employees working twenty (20) or more hours per week for the purpose of off-premises blood donation. Leave is permitted once per calendar year, for generally up to 4 hours. Eligible employees may elect to use any applicable PTO.

Eligible employees must provide reasonable notice of at least three working days or as soon as practicable to their supervisor of their intended use of leave time.

The RF may require employees making off-premises blood donation to show proof of their blood donation in the form of notice of blood donation or a good faith effort at blood donation from the blood bank or some other proof sufficient to the purpose.

"Off-premises blood donation" means blood donation that is not made in connection with a blood drive at the campus location where the employee works or in connection with some other convenient time and place set by the campus or RF.

Bone Marrow Donation Leave

The RF provides unpaid leave to employees working twenty (20) or more hours per week to employees who seek to undergo a medical procedure to donate bone marrow. Employees may take leave to make such a donation, to recuperate from the procedure, and to respond to any resulting complications.

The length of the leave taken must be determined by a physician, but may not exceed twenty-four (24) work hours for each covered request, unless otherwise approved by the RF. When an employee is making a scheduled bone marrow donation, they must notify their supervisor no less than 24 hours prior to the day of the donation.

When the donation is unscheduled, the covered employee should notify their campus HR office as soon as possible after receipt of the request to donate.

The RF may require verification by a health care provider that states the purpose and length of each requested leave.

Crime Victims Leave

The RF will provide unpaid leave to employees who may be a victim of a criminal offense or exercises their rights as a victim or who is subpoenaed to attend a criminal proceeding as a witness. Employees may elect to use appropriate

paid time off during the leave. The employee must provide at least one day notice to their campus RF HR office before taking the leave. Employees should provide their campus RF HR office with a copy of the form provided by the law enforcement agency and if applicable, provide a copy of the notice of each scheduled criminal proceeding that is provided to the employee as a victim.

Please also see the *Safe Leave* section of the [Paid Time Off and Accruals Handbook](#). The process for Safe Leave should be followed for qualifying circumstances, and documentation should not be requested.

Volunteer Emergency Responder Leave

The RF will provide employees unpaid leave to work as a volunteer emergency responder when a state of emergency is declared by the federal or state government. Employees may use appropriate paid time off during the leave.

All employees are eligible for this leave when:

- The RF has previously received written documentation from the head of the employee's fire department or volunteer ambulance service notifying the RF of the employee's status as a volunteer firefighter or member of a volunteer ambulance service; and
- The employee's duties as a volunteer firefighter or member of a volunteer ambulance service are related to the declared emergency.

During the time of emergency the employee is entitled to take unpaid leave while engaged in the actual performance of their duties as (a) a volunteer firefighter, or (b) an enrolled member of a volunteer ambulance service unless the RF determines that the employee's absence would impose an "undue hardship" on the conduct of the RF's business. The campus RF Human Resources office should contact the Central Human Resources office to determine if undue hardship requirements have been met before denying leave.

Upon request, any employee who has been granted this leave must provide their campus RF HR office with a notarized statement from the head of the volunteer fire department or volunteer ambulance service, as applicable, certifying the period of time(s) that the employee responded to any emergency covered under the Volunteer Emergency Responder Leave.

Paid Prenatal Leave

The RF provides employees with 20 hours of Paid Prenatal leave each year, which is separate and apart from other accrued paid time off.

This leave may be used for prenatal health care appointments during or related to an employee's own pregnancy or pregnancy-related condition. Only the employee directly receiving prenatal health care may use Paid Prenatal Leave. A spouse, partner, or other support person attending prenatal appointments with a pregnant person is not entitled to Paid Prenatal Leave, and may charge other appropriate accruals.

Pregnancy-related health care appointments may include: physical examinations, medical procedures, monitoring, testing, discussions with a healthcare provider needed to ensure a healthy pregnancy, end of pregnancy care, and fertility treatment.

Employees should notify their supervisor of the use of Paid Prenatal Leave in the same way they request other types of paid time off. Supervisors may not request medical information regarding the health condition or question the nature of the condition allowing the use of the Paid Prenatal Leave.

Leave of Absence: Child Care

Employees, regardless of sex, are entitled to leave without pay for child care for up to six months immediately following the date of delivery or placement of a child for adoption or foster care. Leave cannot extend beyond the period of appointment. Other types of leave or income replacement may be charged concurrently, as applicable. (See Disability, FMLA, and PFL sections below for additional information.)

Requesting Leave and Returning from Leave

Leave must be requested in writing. At the employee's request, PTO, such as vacation, holiday, parental, or personal accruals, may be charged; however, this leave cannot be used to extend the duration of child care leave. An employee who wishes to return from leave before their stated return date must be allowed to do so.

An employee returning from child care leave will be reinstated to their former position or appointed to a comparable position dependent upon the availability of work and funds.

If the employee returning from Child Care Leave is the birthing parent, they must be provided with a copy of the [Lactation Break and Accommodation Policy](#) upon return from leave. Any requests for accommodation should be addressed, as outlined in the policy.

Child Care Leave and PTO Parental

PTO Parental may only be used during the period of Child Care Leave. For additional information, please see the PTO Parental Section of the [Paid Time Off and Accrual Handbook](#), which outlines PTO Parental eligibility and requirements around use and the [PTO Parental Administration Examples](#) document for more information.

Leave of Absence: Personal

An employee may request other leave without pay. The leave may be granted for up to one year but may not extend beyond the employee's appointment period.

Requesting Leave and Notification to Employee

Requests for leave must be made in writing to the employee's supervisor. PTO vacation, holiday, and personal may be charged with supervisory approval.

If approved, the operating location's office responsible for RF Human Resources must send the employee a letter containing the following information:

- effective date of leave,
- end date of leave,
- what is expected during and at the end of the leave period, and
- the employee's obligation to report after leave

It is the employee's responsibility to notify their manager of any changes in the employee's leave status thirty (30) days before the end date of the leave period. An employee who wishes to return from leave before their stated return date must be allowed to do so.

While on an approved leave of absence for up to one year, an employee may continue health, dental, vision care and life insurance coverage by paying the full premium directly to the RF. All benefits (health, dental, vision care and life insurance) may be continued or just health insurance. If health insurance is not continued, dental, vision care and life insurance may be continued only as a package. Biweekly premiums can be found in the [LOA Other Than Family and](#)

Leave for Service in the Uniformed Services

The RF supports the efforts of employees who engage in service in the uniformed services and provides eligible employees with leave, other benefits, and reinstatement.

While an individual is performing military service, they are deemed to be on a leave of absence and are entitled to the non-seniority rights accorded other similarly situated individuals on non-military leaves of absence. If there is a variation in benefits among different types of nonmilitary leaves of absence, the service member is entitled to the most favorable treatment so long as the nonmilitary leave is comparable.

Employees are entitled not only to non-seniority rights and benefits available at the time they left for military service, but also those that become effective during their service and that are provided to similarly situated employees on furlough or leave of absence.

Reemployed service members are entitled to the seniority and all rights and benefits based on seniority that they would have attained with reasonable certainty had they remained continuously employed. A right or benefit is seniority-based if it is determined by or accrues with length of employment. On the other hand, a right or benefit is not seniority-based if it is compensation for work performed or is made available without regard to length of employment.

Requesting Leave

The employee must give as much advance written or verbal notice of service as possible, except in cases of military necessity, and Human Resources may request a copy of the orders, when they become available.. Employees must notify their campus RF office that handles Human Resources.

Reemployment After Service

Generally, RF shall re-employ an employee upon separation from *service in the uniformed services* or organized militia, provided the employee:

- was honorably discharged or terminated from service, and
- was employed in a position for which there was an expectation of continued employment, and
- has not generally been absent for duty in the uniformed services for longer than a cumulative period of five years while employed at the RF (but certain exceptions apply), and
- reported to work or notified their supervisor of an intention to return to work at the proper time, as indicated in the following table:

Reemployment is not possible, due to changed circumstances or “undue hardship”, please contact the RF Office of General Counsel, prior to taking any employment action.

The following table outlines reemployment notification and timing, based on the Period of Service:

Period of Service	Action Employee Must Take	When Action Must Be Taken
1 — 30 days	report to work	on the next regular workday after the completion of the period of service*
31 — 180 days	notify their supervisor of the employee's intent to return to work and submit an application for reemployment	within 14 days after the completion of the period of service *
181+ days	notify their supervisor of the employee's intent to return to work and submit an application for reemployment	within 90 days after the completion of the period of service

*Special circumstances may apply for state militia

If timely notification of intent to return to work is impossible or unreasonable through no fault of the person, the notification must be submitted as soon as possible on the next day when notification becomes possible.

The RF will reemploy employees in accordance with the escalator principle. The escalator principle requires that the employee be reemployed in a position that reflects with reasonable certainty the pay, promotional opportunities, benefits, seniority, and other job perquisites that they would have attained if not for the period of service. The returning service member's salary should be reviewed upon reemployment to ensure the employee receives all across-the-board and discretionary increases they would have benefited from had they remained continuously employed as an active RF employee.

Should a service member be unqualified for the reemployment position to which they are returning, the RF will make reasonable efforts (such as training or retraining at no expense to the service member) to enable the returning service member to refresh or upgrade their skills and perform the essential tasks of the position. If after reasonable efforts by the RF the service member cannot qualify for the reemployment position, the RF will look for alternative reemployment positions.

An employee who is reinstated may have additional job protections for a period of up to 1 year.

Documentation Upon Return

The RF may request that a person who is absent for a period of service of 31 days or more provides documentation showing that:

- the person's notification for reemployment is timely;
- the person has not exceeded the five-year service limitation (subject to certain exceptions); and
- the person's separation from service was other than for disqualifying reasons under USERRA.

If a person does not provide satisfactory documentation because it is not readily available or does not exist, the RF still must promptly reemploy the person. If, however, after reemploying the person, documentation becomes available that shows one or more of the re-employment requirements were not met, the RF may terminate the person's employment and any rights or benefits that may have been granted.

Pay During Service Member Leave

Employees who are called to active military duty or service as an intermittent disaster-response appointee will be paid for up to 22 workdays or 30 calendar days, whichever is greater, during any one calendar year or any continuous period of ordered military service, whichever is greater. After this leave is exhausted, employees may (but are not required to) use accrued PTO Vacation, Holiday, or Personal or be placed on leave without pay for the period of their military duty.

Military leave will be charged to the employee's current project award.

The Fair Labor Standards Act (FLSA) does not allow salary reductions of less than a full workweek for exempt employees who are called to military duty. An exempt employee who has no appropriate accruals must be advanced appropriate PTO so the absence of less than one week is paid in full.

Accruals

All PTO accruals are discontinued for the duration of unpaid leave. However, length of service during military leave will be credited and any existing balances reinstated upon return to employment at the RF for the purpose of determining

accrual rates.

Health Insurance

Employees who leave their job to perform service in the uniformed services have the right to continue existing health insurance coverage for themselves and their dependents for up to 24 months after the absence begins or for the period of service (plus the time allowed to apply for reemployment), whichever period is shorter. Employees will be responsible for the premiums during the continuation period, as outlined in the Benefits Handbook. Employees may choose to reinstate RF health insurance coverage when re-employed, generally without any waiting periods or exclusions except for service- connected illnesses or injuries. A [Benefits Enrollment Form](#) and current [Biweekly premiums](#) should be provided to employees.

Retirement

Retirement contributions cease when an employee is off the payroll while on covered leave. Qualifying service will be credited towards service for vesting and contribution rate when the employee returns to RF payroll. Retroactive contributions have to be made to the Basic Retirement Plan for the period of qualifying service, based on the employee's salary in effect at the start of the military leave. Campus administrators should contact the Central Office Benefits Department when an employee returns from service to be sure they are credited for service and contributions correctly.

For more information on retirement contributions and vesting after qualified leave under USERRA and NYS Military Leave Law, see the following retirement document: [Service Credit Accumulation Rules for Nonvested Employees on Disability, Military, or FMLA Leave](#)

Definitions (Leave for Services in Uniformed Services)

National Disaster Medical System (NDMS)

An agency within the Federal Emergency Management Agency, Department of Homeland Security. The NDMS provides medical-related assistance to respond to the needs of victims of public health emergencies. Participants in the NDMS are volunteers who serve as intermittent Federal employees when activated. For purposes of USERRA coverage only, these persons are treated as members of the uniformed services when they are activated to provide assistance in response to a public health emergency or to be present for a short period of time when there is a risk of a public health emergency, or when they are participating in authorized training.

Uniformed services means the Armed Forces; the Army National Guard and the Air National Guard when engaged in active duty for training, inactive duty training, or full-time National Guard duty; the commissioned corps of the Public Health Service; and any other category of persons designated by the President in time of war or national emergency. For purposes of USERRA coverage only, service as an intermittent disaster response appointee of the NDMS when federally activated or attending authorized training in support of their Federal mission is deemed "service in the uniformed services," although such appointee is not a member of the "uniformed services" as defined by USERRA.

Service in the uniformed services

The performance of duty on a voluntary or involuntary basis in a uniformed service under competent authority. Service in the uniformed services includes active duty, active and inactive duty for training, National Guard duty, State active duty in response to a national emergency declared by the President under the National Emergencies Act, State active duty in response to a major disaster declared by the President under Section 401 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act, a period for which a person is absent from a position of employment for an examination to determine the fitness of the person to perform such duty, a period for which a System member of the

National Urban Search and Rescue Response System is absent from a position of employment due to an appointment into Federal service under section 327 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act, a period for which a person is absent from a position of employment due to an appointment into service in the Federal Emergency Management Agency as intermittent personnel under section 306(b)(1) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5149(b)(1)). The term also includes a period for which a person is absent from employment to perform funeral honors duty as authorized by law. Service as an intermittent disaster-response appointee upon activation of the National Disaster Medical System (NDMS) or as a participant in an authorized training program is deemed "service in the uniformed services." Service as a System Member in the National Urban Search and Rescue Response System established under the authority of the Federal Emergency Management Agency (FEMA) is considered "service in the uniformed services". A system member means an individual who is not a full-time employee of the Federal Government and who serves on a task force or on a system management or other technical team.

Ordered military duty

The term "ordered military duty", as used in this section, shall mean:

Any military duty performed in the service of the state or of the United States, including but not limited to attendance at any service school or schools conducted by the armed forces of the United States, by a public officer or employee as a member of any force of the organized militia or of any reserve force or reserve component of the armed forces of the United States, pursuant to orders issued by competent state or federal authority, with or without the consent of such public officer or employee.

Leave for Spouses of Service Members

The RF provides up to ten days of unpaid leave time to employees who have a spouse on leave from a deployment with the armed forces, National Guard, or Reserves during a period of military conflict. Spousal military leave will run concurrently with all other types of leave available to the employee. To be eligible, an employee must be scheduled to work at least 20 hours per week.

Please refer to the *Paid Family Leave* section of this handbook to determine whether additional benefits may apply.

Family and Medical Leave Act (FMLA)

The RF provides leave to eligible employees under FMLA. Eligible employees may receive 12 weeks of unpaid job-protected leave during a 12-month period for various health and family-related reasons described in more detail below. For military caregiver leave, an employee may be eligible for up to 26 weeks of leave.

Eligibility

To be eligible for leave under FMLA, an employee must:

- have at least 12 months of service;
- have worked at least 1,250 hours over the previous 12 months; and
- work at a worksite with 50 or more employees in a 75-mile radius

The RF applies FMLA eligibility consistently to all employees who meet the service and hours requirements and not based on the employee's physical work location.

12 Months of Service

Once an employee has completed 12 months of service with the RF, the first FMLA eligibility requirement is satisfied. The 12 months do not have to be consecutive, which means any time worked for the RF could, in most cases, be used to complete the 12 month requirement even if the employee leaves and then returns. If the employee has a

break in service that lasts seven years or more, however, the time worked prior to the break will not count unless the break is due to service covered by the Uniformed Services Employment and Reemployment Rights Act (USERRA).

1,250 Hours Over the Previous 12 Months

The second requirement refers to only the 12 months prior to the requested leave period under FMLA, and time off the payroll is included in that 12-month period. Regardless of any prior service, if an employee is off the payroll for a period of time that brings the number of hours worked by the employee during the prior 12 months below 1,250 hours, the employee will not be eligible for leave under FMLA.

Change in Eligibility Under FMLA

If an employee becomes eligible for leave under FMLA while on leave that otherwise is appropriate under FMLA (as outlined in the Reasons Leave Under FMLA May Be Taken Section below), the terms and conditions of FMLA apply as of the date the employee became eligible.

Example

- If an employee requests leave for reasons qualifying under FMLA on January 1, but worked only 1,210 hours in the immediately preceding 12 months, the employee is not eligible on January 1.
- If, after another 3 weeks, the employee work hours total 1,250 hours during the prior 12 months, the employee becomes eligible, once they've met the hours work requirement.

Example

- An employee begins leave for the birth of a child on January 1, and has met the 1,250 hours requirement but not the 12 months of service requirement. The employee meets the 12 months of service requirement on January 10. The FMLA leave can be designated as of January 10.

Informing Employees about their Rights

Employee sick absences of more than three calendar days and/or an employee request for leave should be reviewed by the operating location to determine whether it meets the conditions for leave under FMLA. When an employee request leave for a reason which may be eligible for leave under FMLA, the operating locations must:

- Have employees complete the [Employee Request for Leave Form](#)
- Provide employees requesting leave appropriate under FMLA a copy of the FMLA [Your Rights and Responsibilities Under the Family and Medical Leave Act](#) and [Notice of Eligibility and Rights and Responsibilities](#) provided by the DOL within five business days of receiving the request for leave.
- If the employee meets the eligibility criteria for leave under FMLA, they must also be provided with the appropriate required forms, as outlined in the [Leave of Absence/Income Replacement – Quick Reference Table](#).

Duration of Leave

Under FMLA, eligible employees are entitled to a maximum of 12 weeks (26 weeks for military caregiver leave) of leave during a 12-month rolling back period. This means that the RF will look back over the last 12 months prior to the effective date of an FMLA request. Any FMLA used during that period will be deducted when determining the balance available for the current request. The 12-month rolling back period is counted each day an employee takes leave. Please see the [Family and Medical Leave Act \(FMLA\) - Rolling Back Period Examples](#) for additional information.

Reinstatement

The employee must be reinstated to their former position or an equivalent position with equivalent pay, benefits, and other terms and conditions of appointment.

Note: Situations where the employee's employment with the RF would have ended regardless of the leave (ex., end of the appointment period, reduction in force, etc.), should be reviewed on a case-by-case basis.

Reasons Leave Under FMLA May Be Taken

Twelve workweeks of leave under FMLA in a 12-month rolling back period for:

- the birth of a child and to care for the newborn child within one year of birth;
- the placement with the employee of a child for adoption or foster care and to care for the newly placed child within one year of placement;
- to care for the employee's spouse, child, or parent (not parent-in-law) who has a serious health condition;
- a serious health condition that makes the employee unable to perform the essential functions of their job, including incapacity due to pregnancy; or
- any qualifying exigency arising out of the fact that the employee's spouse, child, or parent is a covered military member on "covered active duty" or called to covered active duty status.

PFL will be concurrently designated for qualifying leaves, except for bonding when PTO Parental is being used. For more information, refer to the *New York State Paid Family Leave (PFL)* section below.

For military caregiver leave, twenty-six workweeks of leave during a single 12-month period to care for a covered service member with a serious injury or illness if the eligible employee is the service member's spouse, child, parent, or next of kin. An eligible employee is limited to a combined total of 26 workweeks of leave for any FMLA-qualifying reasons during the single 12-month period.

Employee Options for Taking Leave

Employees may take leave under FMLA on a continuous, intermittent, or reduced schedule basis. That means an employee may take leave in separate blocks of time or by reducing the time they work each day or week for a single qualifying reason. When leave is needed for planned medical treatment, the employee must make a reasonable effort to schedule treatment so as not to unduly disrupt RF operations.

If an employee needs intermittent or reduced schedule leave that is foreseeable based on planned medical treatment, they may be temporarily transferred to an alternative position that better accommodates recurring periods of leave. The employee must be provided pay and benefits equivalent to those the employee had in the position prior to the transfer; however, the position does not have to have equivalent duties. When the employee no longer needs to continue on intermittent or reduced schedule leave, the employee must be restored to the same or equivalent job as the job that the employee left when the leave started.

Status of Exempt Employees on Reduced Work Schedule

Employees who are eligible for leave under FMLA and exempt from the overtime provisions of the Fair Labor Standards Act (FLSA) may have time where they are unpaid during the FMLA period, while on a reduced work schedule without affecting their exempt status. Therefore, an exempt employee's salary may be reduced for absences of less than a day if they take leave under FMLA for part of the workday.

Income Replacement During Leave

Short-Term Disability, Workers' Compensation, and NYS Paid Family Leave

Employees who are on leave under FMLA may also be eligible for income replacement benefits under Short-Term

Disability, Workers' Compensation, or NYS Paid Family Leave, if they meet the eligibility criteria.

For more information, refer to the *Income Replacement: Short-Term Disability*, *Income Replacement: Workers Compensation*, or *NYS Paid Family Leave* sections below.

Use of Accrued Paid Time Off During FMLA

An employee who is approved for leave under FMLA for any reason may elect to use accrued paid time off for any part of the leave. If the employee elects to use accruals while on leave under FMLA, accruals must be charged in the increments indicated in the [Paid Time Off and Accruals Handbook](#). Employees who take leave for their own serious health condition are required to use sick accruals before using other forms of accrued time. When an employee chooses to use paid time off accruals, the RF must inform the employee in the [Notice of Eligibility and Rights and Responsibilities \(Form WH-381\)](#).

Employees may charge up to the FTE that they were at prior to going on leave. For example, an employee who was working at .50 FTE may charge up to .50 FTE while out on leave under FMLA, and an employee previously at 1.0 FTE may charge up to 1.0 FTE.

The following table describes the PTO categories that can be charged for various kinds of leave under FMLA.*

Purpose of Leave Under FMLA	Accrued Paid Time Off to be Charged
Birth of a Child*	Sick must be charged during period of approved short-term disability, if applicable, then Vacation, Personal, or Holiday may be used for the remainder of the leave.
Adoption, Foster Care*	Vacation, Personal, or Holiday
Care for a Family Member*	Family Sick (maximum of 30 days per calendar year), Vacation, Personal, or Holiday
Employee's Own Serious Health Condition	Sick must be charged until exhausted, then Vacation, Personal or Holiday may be used for the remainder of the disability period to supplement disability or workers' compensation benefits if applicable.
Qualifying Exigency*	Vacation, Personal or Holiday
Care for Military Service Member*	Family Sick (if applicable, maximum of 30 days per calendar year), Vacation, Personal, or Holiday

***Note:** If the employee is on leave under FMLA and concurrently approved for income replacement under NYS PFL, Short-Term Disability, or Worker's Compensation, the PTO charging requirements of those income replacement programs will govern.

Notifying Employees About FMLA

Operating locations are required to post the [Your Employee Rights Under the Family and Medical Leave Act](#) poster and provide employees with the [Benefits Handbook](#) (at hire), as applicable, or [Employee Handbook](#) containing FMLA information.

Requesting Leave

Employees must comply with RF requirements for requesting leave and provide enough information for the RF to reasonably determine whether the FMLA may apply to the leave request. Employees generally must request leave 30 days in advance when the need for leave is foreseeable. In the case of FMLA leave that is not foreseeable, or for a qualifying exigency, the employee must give notice of the need for such leave as soon as possible and practical,

regardless of how far in advance the leave is needed.

For **planned medical treatment**, the employee must consult with the employer and try to schedule treatment and/or appointments at a time that minimizes the disruption to RF operations.

When the need for leave is foreseeable less than 30 days in advance or is unforeseeable, employees must provide notice as soon as practicable under the circumstances. This will generally be the same or next business day after the need for the leave arises.

When an employee seeks leave for a FMLA-qualifying reason for the first time, the employee does not need to mention the FMLA but must provide sufficient information to provide notice that the leave may be FMLA qualifying. If an employee later requests additional leave for the same qualifying condition, the employee must specifically reference either the qualifying reason for leave or the need for FMLA leave.

The Certification Process

Generally, the RF will require an employee to submit certification to support the need for leave under FMLA. The certification is a document or form completed by the employee and, as appropriate, a healthcare provider.

The certification allows the RF to:

- Obtain information related to the FMLA request, including the likely periods of absences; and
- Verify that an employee, or the employee's family member, has a serious health condition (or, in the case of military family leave, that facts exist to support the employee's request for leave).

An employee's failure to provide the certification may result in the RF's denial of the employee's request for FMLA leave.

Step 1: Within 5 working days of becoming aware of the request, the operating location notifies the employee that certification is required using the form [Notice of Rights and Responsibilities \(Form WH-381\)](#) and provide the employee with the required FMLA certification form(s) as outlined in the [Leave of Absence/Income Replacement - Quick Reference Table](#).

Step 2: The employee provides a completed certification within 15 calendar days, unless it is not feasible under the particular circumstances to do so despite the employee's good faith efforts. When an employee makes diligent good faith efforts but is unable to meet the 15 day deadline, the employee may be entitled to additional time to provide the certification. The 15-day period and the period of absence beginning the day the certification was received is FMLA-protected leave.

Step 3: The RF provides written notification to the employee if the leave will or will not be approved under the FMLA. And provide the employee with the Designation Notice (Form WH-382.)

The RF may identify in writing any deficiencies in the medical certification and ask the employee to provide corrected information within 7 days.

After acquiring a complete and sufficient certification, the RF is not permitted to ask for more information during the period approved under FMLA, such as requiring a doctor's note for each FMLA-related absence.

Employees requesting leave under FMLA must carry out the steps in the following table:

Step	Action
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1	Request Leave from the operating location, either the Employee Request for Leave Form or by providing enough information to the operating location to determine the type of leave being requested.
2	Complete and return the required certification within the timeframe provided, or information regarding the delay. A second or third medical opinion may be required under certain circumstances at the RF's request and expense. Note: Employees who meet the eligibility requirements for income replacement benefits under short-term disability, workers' compensation, or NYS Paid Family Leave should refer to the appropriate sections of this handbook for the process to file a claim for benefits under these programs.

Designation of Leave Under FMLA

RF operating locations should use [Designation Notice \(Form WH-382\)](#), to provide designation notice to employees within five business days of having enough information to determine whether the leave request is approved under FMLA, additional information is needed, or that the leave request is not eligible for leave under FMLA. The Designation Notice informs employees that the requested leave will be designated as FMLA leave and sets out the requirements applicable while the employee is on leave.

The RF may require a fitness-for-duty certification for employees who take leave for their own serious health condition to obtain and present certification from the employee's health care provider that the employee is able to resume work as a condition of restoring an employee. If the RF requires a fitness-for-duty certification, the RF must indicate this in the Designation Notice and must provide the employee a list of the employee's essential job functions, if the essential duties must be performed for the return to work. The RF may delay restoration of the employee until the employee submits a required fitness-for-duty.

Leave Appropriate Under FMLA

- The operating location must provide a [Designation Notice \(WH-382\)](#) within five business days of having enough information to determine whether the leave is FMLA-qualifying;
- The operating location must provide a new Designation Notice for each FMLA-qualifying reason per applicable 12-month period;
- The Designation Notice must include any fitness for duty requirements; and
- The Designation Notice must state the amount of leave that is designated and counted against the employee's FMLA entitlement, if known. If the amount of leave is not known at the time of the designation, the operating location must provide this information to the employee upon request, but no more often than once in a 30-day period and only if leave was taken in that period.

If the employee requests leave and the information provided in the Designation Notice changes (for example, an employee on intermittent leave exhausts their FMLA entitlement), the operating location must provide the employee written notice of the change within five business days of receiving the employee's leave request subsequent to any change.

Need for More Information

If an operating location is unable to determine whether a leave request should be designated as FMLA protected because a submitted certification is incomplete or insufficient, the RF is required to state in writing what additional information is needed to make a determination. A certification is considered incomplete if one or more applicable

entries have not been completed. A certification is considered insufficient if the information provided is vague, ambiguous, or non-responsive. The RF should use the [Designation Notice WH-382](#) to inform the employee that the certification is incomplete or insufficient, identify what information is needed to make the certification complete and sufficient and provide a minimum of 7 calendar days for completion. The RF may need to provide an employee additional time to correct the deficiency if the employee has made diligent good faith efforts, but cannot produce the additional information within the 7-day window. If an employee fails to provide a complete and sufficient certification despite the opportunity to cure the deficiency, the RF may deny the employee's request for FMLA leave.

Recertification

The RF may, under certain circumstances, request that an employee "recertify" their serious health condition or that of a family member within the same leave year. Generally, the RF may request the employee provide a recertification no more often than every 30 days and only when the employee is actually absent or has requested to be absent. However, if the initial certification indicates that the minimum duration of the serious health condition would be more than 30 days, an employer must generally wait until that minimum duration expires before requesting recertification. In all cases, the RF may request recertification every six months in connection with an absence.

In general, the RF may ask for the same information in a recertification as that permitted in the initial medical certification. As with the initial certification, in most circumstances, the employee has 15 calendar days after the employer's request to provide a complete and sufficient recertification. The employee is responsible for paying for the cost of a recertification.

The RF may only request a recertification in connection with an absence by the employee in less than 30 days under limited circumstances. Please contact Central Office HR prior to making a request for recertification in less than 30 days.

Where the need for leave for an employee's or family member's serious health condition lasts beyond a single leave year, the RF may require a new certification in each subsequent FMLA leave year. That means the RF may request a new medical certification with the first absence in a new 12-month leave year. Because it is a new certification and not a recertification, the RF may seek second and third opinions for these new medical certifications, as well as authenticate or clarify the certification with the health care provider.

Leave Not Approved Under FMLA

The operating location must provide the employee written notice that the leave does not qualify for FMLA. This may occur if the employee is not eligible for FMLA, is requesting leave for a purpose not allowed under FMLA, has already used all the leave they are entitled to under FMLA for the appropriate 12-month period, or has failed to provide a complete and sufficient certification despite the opportunity to cure the deficiency. The RF should use the [Designation Notice Form WH-382](#) to notify the employee that the leave is not FMLA-qualifying.

Retroactive Designation of Leave

In limited circumstances, leave may be retroactively designated as FMLA as long as the retroactive designation will not prejudice or restrict employee options. For example, an employee may be prejudiced if the employee could have taken the leave intermittently or on a reduced schedule had they known there was an option. Retroactive designation is generally not permitted for care of a family member. Leave may also be retroactively designated by mutual agreement between the RF and employee.

Approving Leave Requests

When FMLA Applies

The approved leave must be administered under the terms and conditions of the FMLA, and where appropriate, under the RF's policy and guidelines. Short-term disability, workers' compensation, or NYS Paid Family Leave income replacement benefits run concurrently with leave under FMLA. Additional documentation requirements may be required for those seeking income replacement through those programs.

When FMLA Does Not Apply

If leave does not qualify under FMLA, or FMLA has been exhausted, the employee may still be eligible for leave under other provisions. For example, employees are eligible for six months of leave immediately following the birth of a child or placement for adoption or foster care under Child Care Leave. If the leave is for care of a family member they may be eligible for Paid Family Leave. If the leave is for the employee's illness or injury, they may be eligible for leave as an accommodation under the American with Disabilities Act or NYS Human Rights Law or applicable local laws.

Requests involving extended leave for an employee's serious injury or illness should be reviewed with the RF Central Office of Human Resources and Office of General Counsel.

If no other leave protection applies, an employee may request vacation, sick, holiday, or personal paid time off which may or may not be granted by the operating location under RF policy, depending on the employee's eligibility, accrual balance, and the needs of the operating location. Short-term disability or workers' compensation income replacement benefits may also be available.

FMLA Records

The office responsible for RF Human Resources must retain the following documents for each leave request under FMLA:

- leave paperwork provided to the employee (ex. Employee Rights and Responsibilities, Notice of Eligibility, Employee Request for Leave Form)
- signed Employee Request for Leave form
- signed certification(s)
- Designation Notice(s)
- Dates and amount of time counted against FMLA entitlement
- any employer response to employee request for leave
- all correspondence, including emails, and communication with the employee

Confidentiality

Operating locations must maintain the confidentiality of medical records related to leave requested and taken under FMLA. Medical records must be kept in a confidential medical file separate from the employee Personnel File.

Continuation of Benefits

Under FMLA, RF health, dental and vision insurance benefits in effect at the time of the leave will be continued up to 12 weeks for an employee on approved leave under FMLA. This period can be extended to 26 weeks for employees caring for a military family member who is seriously injured in the line of duty. Life insurance may be continued at the employee's option.

An employee may also choose not to retain group health plan coverage during leave under FMLA. However, when an employee returns from leave, the employee is entitled to be reinstated on the same terms as prior to taking the leave, including family or dependent coverages, without any qualifying period, physical examination, exclusion of pre-existing conditions, etc. For more information, please see the Restoration/Reinstatement of Benefits section below.

How to Obtain Continuation of Benefits

If accruals are used at least .50 FTE during the period of leave under FMLA, all benefits are continued as a regular employee. If an employee does not use accruals and receives no pay for one or more full pay periods, they may choose to continue their benefits by completing a [Leave Application for Continuation of Group Benefits](#) and attaching a copy of the approved employee request for leave form.

Payment of Premiums

During periods of approved leave under FMLA when no payment is received from the RF, an employee will be responsible for payment of the employee share of health, dental and enhanced vision insurance premiums. (Basic vision is continued without charge to the employee.) The employee may also elect to continue basic and/or optional life insurance coverage through payment of the full premium.

An employee [premium rate chart](#) for continued benefit coverage is available on the RF website.

Premiums may be paid in advance while on leave. Full payment can be deducted from the last paycheck if payment of the health premium on a pre-tax basis is desired, or advance payments can be paid monthly or biweekly. The premiums are listed in the document [Family and Medical Leave Act \(FMLA\) – Biweekly Premiums for Continuation of Benefits for Regular Employees](#).

If payment is not received within 30 days of the due date, coverage will be canceled. The employee, however, must be notified in writing within 15 calendar days before coverage is cancelled. Written notice of cancellation should be sent out within 15 days after the due date.

Benefit Continuation During Leave Without Pay After FMLA

An employee continuing on an approved leave without pay (LWOP), should contact the office at the operating location that handles employee benefits for information on premium payment under LWOP.

Recovery of Premiums Paid if Employee Does Not Return to Work

If an employee does not return to work after FMLA exhausts, the RF may seek to recover the full share of the premium paid by the RF while the employee was on unpaid leave. The RF will not seek recovery if the employee does not return because of:

- The continuation, recurrence, or onset of a serious health condition of the employee or the employee's family member, or a serious injury or illness of a covered servicemember that would otherwise entitle the employee to leave under the FMLA; or
- Other circumstances beyond the employee's control (e.g., where a parent chooses to stay home with a newborn child *with a serious health condition*, a spouse is unexpectedly transferred to a job location more than 75 miles from the worksite, a relative other than a covered family member has a serious health condition and the employee is needed to provide care, the employee is laid off while on leave, etc.).

An employee who returns to work for at least 30 calendar days is considered to have "returned" to work for the purposes of the FMLA. In addition, an employee who transfers directly from taking FMLA leave to retirement, or retires during the first 30 days after returning to work is considered to have returned to work.

If an employee does not return after FMLA, please contact RF Central Office.

Retirement Plan

An employee's time spent on leave under FMLA will be counted toward vesting in the retirement plan when it is necessary to prevent a break-in-service which would affect the employee's retirement benefits. However, no contribution will be made for any period during which the employee is not in pay status.

Restoration/Reinstatement of Benefits

When an employee returns from FMLA leave, they must be restored to the same job that the employee held when the leave began or to an "equivalent job." The employee is not guaranteed the actual job they held prior to the leave. An "equivalent job" means a job that is virtually identical to the original job in terms of pay (including shift differential and opportunity for overtime), benefits, and other employment terms and conditions (including shift and location). An employee is entitled to any unconditional pay increases that occurred while they are on FMLA leave, such as cost of living increases. For employees in unpaid leave, these increases should be processed with an effective date of when the employee returns to paid status.

All employment benefits are immediately reinstated to the employee upon return to work after leave under FMLA, without waiting periods, regardless of whether the benefit was continued during leave under FMLA, and are continued as if the employee had been in pay status during the leave period, subject to any changes in benefit levels affecting the entire workforce.

Supervisors and managers may only be informed of necessary restrictions on work duties and necessary accommodations.

Definitions (FMLA)

Definition of child

A child is a biological, adopted, or foster child, a stepchild, a legal ward, or a child of a person *standing in loco parentis*, who is either: (a) under age 18, or (b) age 18 or older and "incapable of self-care because of a mental or physical disability" at the time that FMLA leave is to commence. The onset of a disability may occur at any age for purposes of the definition of an adult child under the FMLA.

Additional information is outlined on the [FMLA Fact Sheet #28K: Using FMLA Leave to Care for an Adult Child with a Disability](#), the [Administrator's Interpretation No. 2013-1](#), and the [Questions and Answers concerning the use of FMLA leave to care for a son or daughter age 18 or older](#) FAQ.

Definition of Serious Health Condition

Serious health condition" means an illness, injury, impairment, or physical or mental condition that involves:

- any period of incapacity or treatment connected with inpatient care (ex., an overnight stay) in a hospital, hospice, or residential medical care facility; or
- a period of incapacity requiring absence of more than three calendar days from work, school, or other regular daily activities that also involves continuing treatment by (or under the supervision of) a health care provider; or
- any period of incapacity due to pregnancy, or for prenatal care; or
- any period of incapacity (or treatment therefore) due to a chronic serious health condition (ex., asthma, diabetes, epilepsy, etc.); or

- a period of incapacity that is permanent or long-term due to a condition for which treatment may not be effective (ex., Alzheimer's, stroke, terminal diseases, etc.); or,
- any absences to receive multiple treatments (including any period of recovery therefrom) by, or on referral by, a health care provider for a condition that likely would result in incapacity of more than three consecutive days if left untreated (ex., chemotherapy, physical therapy, dialysis, etc.) or for restorative surgery after an accident or other injury.

Definition of Family Member

Family members are the employee's spouse (husband or wife as defined or recognized in the state where the individual was married, including a common law marriage or same-sex marriage, and including a marriage that was validly entered into outside of the US if the marriage could have been entered in at least one state), child (under age 18; or child age 18 or older and incapable of self-care because of a mental or physical disability), and parents, including a biological, adoptive, step or foster parent, or anyone designated *in loco parentis* with the employee when the employee was a child, but not including parent(s)-in-law.

Definition of Covered Active Duty

Covered active duty, in the case of a member of the Regular Armed Forces, is defined as duty under deployment to a foreign country. In the case of a member of the Reserves or National Guard, covered active duty is duty during deployment to a foreign country under a call or order to active duty in support of a contingency operation.

Definition of Qualifying Exigency Leave

Employees are eligible to take up to 12 weeks of job protected leave under FMLA for any qualifying exigency that arises while a covered Service member who is a member of the Armed Forces, Reserves, or National Guard is on covered active duty in a foreign country or is called to covered active duty in a foreign country.

There are 9 different categories of this type of leave:

1. Short-notice deployment: a covered military member is notified of an impending call or order to covered active duty 7 or less days before deployment.
2. Military events and related activities: to attend any official ceremony, program, or event sponsored by the military that is related to covered active duty, or to attend family support or assistance programs or information briefings sponsored by the military.
3. Child care and school activities: to arrange for childcare when covered active duty necessitates a change in childcare arrangements, to provide childcare on an urgent basis when the urgency arises from covered active duty status, to enroll in a new school or daycare because of covered active duty, or to attend meetings at a school or daycare for a child of a covered service member due to circumstances arising from covered active duty. The employee does not need to be related to the military member's child to take qualify exigency leave for this purpose, but the military member must be the parent, spouse or child of the employee taking leave.
4. Financial and legal arrangements: to make or update financial or legal arrangements to address a covered military member's absence while on covered active duty or to act as a covered military member's representative before a federal, state, or local agency to obtain or arrange military service benefits while a covered service member is on covered active duty.
5. Counseling: to attend counseling provided by someone other than a health care provider for oneself, the covered military member, or a child or a covered service member if the need for counseling arises from covered active duty or the call to covered active duty.
6. Rest and recuperation: to spend up to 15 days of leave with a covered military member who is on short-term, temporary, rest and recuperation leave.
7. Post-deployment activities: to attend arrival ceremonies, reintegration briefings and events and other official ceremonies sponsored by the military for a period of 90 days after the termination of covered active duty status, or to address issues that arise from the death of a covered military member while on covered active

duty status.

8. Parental care: to care for the parent of a military member, or someone who stood in loco parentis of the military member, when the parent is incapable of self-care and the need for leave arises out of the military member's covered active duty or call to covered active duty status. The employee does not need to be related to the military member's parent to take qualify exigency leave for this purpose but the military member must be the parent, spouse or child of the employee taking FMLA leave and it must be the military member 's parent who is receiving assistance.
9. Additional activities: any other event that may arise out of covered active duty or a call to covered active duty status, provided that such leave is agreed upon by the employer and employee.

Definition of a Covered Service Member

A covered service member is either:

- a current member of the Armed Forces (including a member of the National Guard or Reserves) who is undergoing medical treatment, recuperation, or therapy, is in outpatient status, or is on the temporary disability retired list, for a serious injury or illness, or
- a covered veteran who is undergoing medical treatment, recuperation or therapy for a serious injury or illness. A covered veteran is an individual who was a member of the Armed Forces (including a member of the National Guard or Reserves), and was discharged or released under conditions other than dishonorable at any time during the five-year period prior to the first date the eligible employee takes FMLA leave to care for the covered veteran.

Definition of Covered Service Member Serious Injury or Illness

For a current service member, a serious injury or illness is an injury or illness that was incurred by the covered service member in the line of duty on active duty in the Armed Forces or that existed before the beginning of the member's active duty and was aggravated by service in the line of duty on active duty in the Armed Forces, and that may render the member medically unfit to perform the duties of the member's office, grade, rank or rating.

For a veteran, a serious injury or illness is an injury or illness that was incurred by the member in the line of duty on active duty in the Armed Forces (or existed before the beginning of the member's active duty and was aggravated by service in the line of duty on active duty in the Armed Forces) and manifested itself before or after the member became a veteran, and is:

- (i) a continuation of a serious injury or illness that was incurred or aggravated when the covered veteran was a member of the Armed Forces and rendered the service member unable to perform the duties of the service member's office, grade, rank, or rating; or
- (ii) a physical or mental condition for which the covered veteran has received a U.S. Department of Veterans Affairs Service-Related Disability Rating (VASRD) of 50 percent or greater, and such VASRD rating is based, in whole or in part, on the condition precipitating the need for military caregiver leave; or
- (iii) a physical or mental condition that substantially impairs the covered veteran's ability to secure or follow a substantially gainful occupation by reason of a disability or disabilities related to military service, or would do so absent treatment; or
- (iv) an injury, including a psychological injury, on the basis of which the covered veteran has been enrolled in the Department of Veterans Affairs Program of Comprehensive Assistance for Family Caregivers.

Definition of Next of Kin:

Next of kin is defined as the nearest blood relative (other than spouse, parent, son or daughter).

Certification for Military Caregiver Leave

The RF may require that a request for military caregiver leave be supported by a certification. The certification may be completed by a Department of Defense (DOD), Veterans Affairs (VA), or TRICARE health care provider, or by a private health care provider. The employee may not be held liable for administrative delays in the issuance of military documents, where the employee has exercised diligent, good-faith efforts to obtain such documents. The RF should use the Wage and Hour Division prototype Military Caregiver Leave certification forms, as outlined in the [Leave of Absence/Income Replacement – Quick Reference Tables](#).

Income Replacement: Short-Term Disability

Short-term disability provides partial income replacement for an employee's own non-work related illness or injury. This section addresses use of PTO while receiving income replacement benefits under short-term disability. For more information on short-term disability income replacement benefits, refer to the [Benefits Handbook](#), [NYS Disability Benefits](#), and [Short-Term Disability – Claims Process](#).

Eligibility

All RF employees are eligible and are automatically enrolled in this benefit.

There is no waiting period if eligibility was established with a previous employer. If eligibility was not previously established, coverage begins:

- After four consecutive weeks of service for full-time employees
- After 25 regular work days for part-time employees

Short-Term Disability and Use of PTO

Sick accruals must be charged at the employee's FTE from the first day during a period approved under Short-Term Disability until the accruals are exhausted (and may be used for the entire 26 weeks). If an observed holiday falls during the period of short-term disability, holiday is charged for that day. If a floating holiday falls during the period of disability, sick accruals are charged for the day and the holiday banked for future use. The employee remains on the RF payroll until all sick accruals are exhausted, or through their current period of appointment, whichever comes first. Once an employee has been out for 7 consecutive calendar days, short-term disability paperwork must be submitted.

An employee may use accrued PTO vacation, holiday or personal to supplement disability income up to the equivalent of the employee's regular salary. For additional information, see the *Charging Accruals while Receiving Income Replacement Benefits* section below.

Notification of Illness or Injury

An employee must notify their supervisor or the local Research Foundation Human Resources office of their inability to perform their work because of a non-work-related illness, injury, or other covered medical condition in order to receive Short-Term Disability Benefits (DBL) and/or Voluntary Short-Term Disability (VSTD) benefits.

The operating location will verify the employee's eligibility status (for DBL) and/or enrollment status (for VSTD) and check their sick accrual status.

Charging Sick Accruals

Operating locations must charge a disabled employee's sick accruals as follows, once a determination of leave and/or income-replacement benefit availability has been made:

If the employee...	then...
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has sick accruals	charge sick accruals until they are exhausted. Provide the employee with required forms at the appropriate time. Refer to the "Required Forms" section in this document.
does not have sick accruals	provide the employee with required forms when the disability exceeds seven days.

Required Forms

The following forms must be sent to employees at the beginning of their disability period:

- [Statement of Rights \(DB-271S\)](#) - provides information on an employee's eligibility for disability benefits and must be sent to an employee at the start of a disability along with the disability claim form.
- [Notice and Proof of Claim for Disability Benefits \(DB-450\)](#) - includes the RF policy number, indicated in the chart on the [Short-Term Disability Claims Process](#).

Note: These forms must be sent to the employee once the disability exceeds, or is anticipated to exceed, seven days.

When Claim Must Be Filed

The "Statement of Rights" indicates that a claim form must be filed within 30 days (but not more than 26 weeks) from the date the disability begins.

Payment

The carrier reviews the claim and makes the disability determination. If the claim is approved, payment will be made directly to the employee via check or Direct Deposit, if provided, after sick accruals have been exhausted.

Monitoring Claims

The RF Central Office of Human Resources, Benefits Services Unit, is responsible for providing corporate oversight on our policies and ensure the policy the carrier processes the claim provides payment to the employee.

Additional Requirement Information

The carrier may request additional medical records or an independent medical examination at no cost to the employee if there is unclear or conflicting medical information or if the carrier feels the length of the disability is inconsistent with the diagnosis. A medical practitioner certified by the Workers' Compensation Board and working in the employee's home area is selected by an outside agency. The agency will make any necessary arrangements with the medical practitioner. The carrier may also request payroll records to verify earnings and VSTD coverage.

If a Claim is Denied

If the claim is denied, the carrier will provide notification.

Note: Long-term disability claims can be initially approved, and subsequently denied, during any of the claim's periodic reviews.

The employee has the right to appeal if denied. Instructions for appealing are included in the denial letter sent from the carrier.

Funding Sick Accruals during Short-Term Disability

If an employee is on leave using sick accruals during a period of time that qualifies as a total disability under NYS Short-Term Disability for more than 30 consecutive calendar days (includes Saturdays, Sundays, and holidays) it is

RF policy that payments to the employee for the consecutive sick accruals taken on the 31st day and thereafter should be charged to the RF's fringe benefit pool rather than the account to which the employee was appointed. Since observed holidays are not charged as sick accruals, they are not funded from the fringe benefit pool account, however they do count toward the 30 calendar days.

Reimbursements from the fringe benefit pool account to the grant are processed through Oracle. Operating locations should charge payments to fund sick over 30 days to the campus GL withholding award by processing a Distribution Adjustment using the SWM Sick Leave expenditure type. Refer to the [Corporate GL Withholding Awards](#) guide.

Short-Term Disability and FMLA

Income replacement benefits approved under Short-Term Disability may run concurrently with any approved period of leave under FMLA. See the *Family and Medical Leave Act (FMLA)* section of this handbook.

Short-Term Disability and Paid Family Leave (PFL)

Employees cannot use more than a combined total of 26 weeks short-term disability and PFL per year.

Short-Term Disability and Long-Term Disability

Eligible employees who have a certified total disability for more than 180 continuous days may have their short-term disability reviewed for eligibility under long-term disability. For more information, please review the [Long-Term Disability Insurance: Claims Process](#).

Income Replacement: Workers' Compensation

Employees are eligible to receive workers' compensation benefits (partial income replacement and/or medical care) for a work-related illness or injury. This section addresses use of PTO and intersection with types of leave, while receiving income replacement under workers' compensation. For more information on workers' compensation benefits, refer to the [Benefits Handbook](#).

Eligibility

All employees are eligible for workers' compensation coverage in connection with a work-related injury or illness. The approval or denial of a claim is determined by the RF's Worker's Compensation Carrier, or may be determined by the Worker's Compensation Board, as required.

Coordinating Sick Accruals and Workers' Compensation Benefits

An employee may choose to remain on the RF payroll and use sick accruals from the first day of the injury or illness until sick accruals are exhausted. Once sick accruals have been exhausted, they may receive workers' compensation income replacement benefits for the duration of the disability and supplement with any remaining, accrued, PTO Vacation, Personal, or Holiday accruals according to the section on How to calculate maximum rate to charge PTO accruals.

An employee may instead elect to receive workers' compensation income replacement benefits directly from the carrier, beginning the first day they become eligible for the benefits.

FMLA will run concurrently while an employee is out of work due to a work-related injury or illness if the illness or injury is FMLA-qualifying. For additional information, see the *Family and Medical Leave Act (FMLA)* section of this handbook.

Sick Accrual Credit

Reimbursement From the Insurance Carrier

If an employee chooses to use sick accruals, once the claim is approved by the Workers' Compensation Board, the RF will request reimbursement from the insurance carrier for the period during which sick accruals were paid to the employee. Once the RF receives reimbursement from the insurance carrier, Central Office restores the dollar amount of the reimbursement to the award, and the operating location can process the accrual reimbursement.

Note: Only sick accruals are eligible for reimbursement.

Outstanding Workers' Compensation Reimbursement

If an employee retires, who meets the requirements for Retiree Health, and has an outstanding Workers' Compensation sick accrual reimbursement, a retirement contribution will be made on the available sick accrued at the time of retirement, up to a maximum of 200 days.

When the RF receives reimbursement for the sick accruals used by the employee, an additional retirement contribution will be made to the employee's TIAA contract, provided IRS limits are not exceeded under the tax rules in effect at the time of the reimbursement and the employee has not already received the maximum contribution of 200 days. If IRS section 415 code limits are exceeded, a cash payment in lieu of the retirement contribution will be paid to the employee.

Example of Reimbursement

Jude Smith earned \$1,500 per week before being injured on the job on July 2. The maximum workers' compensation income replacement benefit for disablements incurred is two-thirds of the employee's average weekly wage up to a maximum of the NYS Average Weekly Wage, which is adjusted annually.

If Jude chooses to use sick accruals from the first day of her injury, a portion of her sick accruals should be restored by the campus based on the value of the reimbursement. To figure out the amount of sick accruals that should be reimbursed for employees whose AWW is higher than the NYS AWW (which is \$1,450.17 for this example), use the following calculation: $(\text{NYS AWW} \times .67) / \text{Employee's AWW} = \text{reimbursement}$. Using figures in the above scenario: $(\$1,450.17 \times .67) = \$971.61 / \$1,500 = .65$.

Charging Accruals While Receiving Income Replacement Benefits

An employee approved for income replacement under short-term disability may receive a maximum of \$170/week from the disability insurance carrier. The total amount the employee receives each pay period from the RF, Short-Term disability and voluntary short-term disability (VSTD) cannot exceed the employee's normal salary per pay period. The following calculation should be used to determine the amount of RF accruals needed to make up the difference between the short-term disability payment and the employee's normal RF salary.

This calculation can also be used to determine the maximum accruals that can be charged for employees receiving workers' compensation or New York State PFL income replacement benefits.

Step	Action
1	Calculate the maximum salary the employee can earn from the RF while on disability/workers compensation benefit (WCB). (Pre-LOA income – Total disability ¹ , WCB, or NYS PFL payment ¹ = Maximum salary) ¹ Total disability payment = New York state disability plus RF voluntary short-term disability payment.

2	Calculate the appropriate full-time equivalency (FTE) based on the maximum salary the employee can earn. [(Maximum amount employee can earn after receiving disability, WCB, or NYS PFL payment * FTE) / Pre-LOA income = Maximum FTE]
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Scenario #1:

Employee was working full time at 1.0 FTE.

Employee has an annual salary of \$75,000 (\$2884.62/pay period).

Employee receives \$170.00/week (\$340.00/pay period) total disability or WCB (if receiving WCB, replace \$340 in the following calculation with the amount of WCB)

Calculation:

$\$2884.62 - \$340.00 = \$2544.62$ Maximum salary employee can earn from RF while receiving disability or workers' compensation payments.

$(\$2,544.62 * 1.0) / \$2,884.62 = 0.88$ FTE.

Result:

This employee may charge accruals at the maximum rate of 0.88 FTE while they are receiving disability or workers' compensation payments.

Scenario #2:

Employee was working part time at 0.60 FTE.

Employee has an annual salary of \$50,000 (\$1923.07/pay period).

Employee receives \$170.00/week (\$340.00/pay period). Total disability or WCB (if receiving WCB, replace \$340 in the following calculation with the amount of WCB)

Calculation:

$\$1923.07 - \$340.00 = \$1583.07$ Maximum salary employee can earn from RF while receiving disability or workers' compensation payments.

$(\$1583.07 * .60) / \$1923.07 = 0.50$ FTE.

Result:

This employee may charge accruals at the maximum rate of 0.50 FTE while they are receiving disability or workers' compensation payments.

Scenario #3:

Employee was working full time at 1.0 FTE.

Employee has an annual salary of \$60,000 (\$2307.69/pay period).

Employee receives \$500.00/week total disability or workers' compensation from NYS and VSTD (\$1000.00/pay period).

Calculation:

$\$2307.69 - \$1000.00 = \$1307.69$ Maximum salary employee can earn from RF while receiving disability or workers' compensation payments.

$(\$1307.69 * 1.0) / \$2307.69 = 0.57$ FTE.

Result:

This employee may charge accruals at the maximum rate of 0.57 FTE while they are receiving disability or workers' compensation payments.

New York State Paid Family Leave (PFL)

The RF provides eligible employees Paid Family Leave (PFL) in accordance with the requirements of New York State (NYS) regulations. PFL provides job protection and income replacement to eligible employees.

Eligibility

To qualify for PFL, employees must:

- Work in New York State; and
- Either:
 - Work 20 hours or more per week for 26 consecutive weeks of employment; or
 - Work less than 20 hours per week and complete 175 days worked, including paid time off.

The RF will count use of scheduled vacation, personal, sick, holiday PTO or other time away from work that has been approved by the RF, or other periods where the employee is away from work but is still considered to be an employee towards consecutive weeks or days worked when determining eligibility.

Periods approved for income replacement under short-term disability shall not be counted as consecutive weeks or days worked when determining eligibility.

The RF NYS PFL Individual Eligibility Monitoring Report can be used to assist with determining eligibility.

Reasons Leave May be Taken

Eligible employees may take leave for the following reasons:

- To take care of a seriously ill, injured, or impaired family member, or a family member who has a physical or mental condition that involves inpatient care or continuing treatment. A "family member" includes: spouse, domestic partner (legal registration is not required), child/stepchild and anyone for whom you have legal custody, parent/stepparent, parent-in-law, grandparent, grandchild, or sibling
- To bond with a newborn, adopted or foster, step child, a legal ward, or son or daughter of a domestic partner in the first 12 months after birth or placement
- To attend to family issues related to a qualifying military deployment; or

Duration and Benefits

Eligible employees may take up to 12 weeks of Paid Family Leave, and receive 67% of their average weekly wage, not to exceed 67% of the New York State Average Weekly Wage, which is readjusted annually. Please review the Research Foundation's [New York State Paid Family Leave \(NYS PFL\)](#) webpage for the current rates.

The RF will use a 12 months rolling back period to determine how much PFL an employee is eligible for, when a request is made. This means that the RF will look back over the last 12 months prior to the effective date of a PFL request. Any PFL used during that period will be deducted when determining the balance available for the current request.

Employee Options for Taking Leave

Employees may take leave from work on a consecutive basis or an intermittent or reduced schedule basis. That means an employee may take leave in separate blocks of time or by reducing the time they work each day or week for

a single qualifying reason.

Leave Increments

Employees may take leave continuously or intermittently in the following ways:

- **Weekly** – employees taking PFL in weekly increments will be eligible for a maximum of 12 weeks of leave in at 52 week period.
- **Daily** – when employees take leave in daily increments, the employee's maximum period of PFL is calculated based on the average number of days worked per week. When the PFL documentation is submitted to the carrier, they will make the determination of the average number of days worked per week, which will determine the amount of intermittent/reduced schedule PFL available.

PFL Benefits

Employees are eligible for income replacement benefits while on PFL. Employees apply for benefits through the RF's Paid Family Leave insurance carrier. See the [NYS Paid Family Leave: Claims Process](#) for more information on applying for benefits.

The PFL carrier reviews the application for PFL and approves or denies the claim. If the claim is approved, the payment will be sent via check to the RF for accrual reimbursement or directly to the employee, depending on PTO usage.

Employees may only receive payment for PFL taken in full day increments. If an employee takes PFL for less than a full day increment, they are not entitled to PFL benefits.

Benefits are paid in the following ways:

Weekly – weekly benefits are paid based on:

- If the employee's AWW is higher than the state AWW, then it is the appropriate percentage of the state AWW at the time the leave begins.
- If the employee's AWW is less than the state AWW, then AWW is calculated for the 8 weeks prior to going out on leave using the 8 weeks prior to the last day worked before the leave OR the eight weeks prior, but not including the week PFL begins. Whichever is the higher average weekly wage should be used. Operating locations should run the "RF Individual NYS Paid Family Leave Average Weekly Wage Calculation" report to calculate the AWW for employees. See the [NYS Paid Family Leave: Claims Process](#) for more information on calculating the AWW and running the report. The current AWW can be found on the Research Foundation's [New York State Paid Family Leave \(NYS PFL\)](#) webpage.

Daily – daily benefits are calculated based on the employee's AWW (computed in the same manner outlined above) divided by the average number of days the employee worked per week. To arrive at the average number of days the employee worked per week, average the number of days the employee worked per week over the same eight weeks used in calculating the employee's AWW. The RF NYS PFL Individual Eligibility Monitoring Report provides work schedules for employees and days worked as reported in E-time Reporting for nonexempt employees.

Calculation of the Average Weekly Wage (AWW)

The AWW is calculated using the employee's gross weekly wages for the applicable 8-week period preceding leave. Gross wages should include all remuneration required under applicable NYS Paid Family Leave regulations, including bonuses or other forms of compensation when required. The "RF Individual NYS Paid Family Leave Average Weekly Wage Calculation" report can be run for an individual employee to provide the gross wages used in the calculation and to calculate the AWW.

The AWW can be calculated in two ways: (1) using the 8 weeks, or portion thereof, worked before leave, including the employee's last day worked; or (2) using the 8 weeks, or portion thereof, immediately preceding and excluding the

week in which PFL began, whichever results in the higher AWW. The "RF Individual NYS Paid Family Leave Average Weekly Wage Calculation" report should be run using both methods to determine which calculation produces the higher AWW.

Additional Requirement Information

The carrier may request additional documentation if there is unclear or conflicting information on the application for PFL. They may also request payroll records to verify earnings to determine the Average Weekly Wage for benefit payment.

Reinstatement

Except in limited circumstances, the employee must be reinstated to their former position or an equivalent position with equivalent pay, benefits and other terms and conditions of appointment. Any decision not to reinstate an employee returning from PFL must be made in consultation with RF Central Office HR and the General Counsel's office.

Changes in Employment Status

Change in Eligibility While on Leave

If an employee becomes eligible for PFL while on leave that otherwise is appropriate for PFL, the terms and conditions apply as of the date the employee became eligible.

Example: An employee begins leave for the birth of a child on February 1 and completes 26 consecutive weeks of employment, using accruals, on February 15. PFL can be designated and applied for as of February 15.

Change in Schedule

Employees who become eligible for PFL by meeting the eligibility criteria above continue to be eligible for PFL even if their schedule changes.

Employees who have a PFL Waiver processed, and then become ineligible for the PFL waiver will be required to pay deductions as outlined in the PFL Waiver section below.

Breaks in Service

Employees who separate from RF employment and are rehired after a break of more than 28 days need to meet the eligibility criteria for PFL. Employees who separate from employment and are rehired within 28 days of separation will maintain continuous service for PFL benefits and must make up any missed deductions for the period of time they were out.

10 Month and Academic Year Appointments

Employees who have time off of the payroll during a regular academic year or 10 month appointment will maintain continuous service for PFL eligibility and benefits and must make up deductions for any time in unpaid status (ex. summer period.) 10 month and academic year appointments should be indicated in the Appointment Type field in Oracle. This field can be accessed by clicking the Others button on the assignment form.

Payroll Deductions

Eligible employees will have payroll deductions taken from their check for the PFL benefit. Payroll deductions are not taken during periods of disability.

Waivers

Employees whose appointment is expected to meet the eligibility criteria cannot opt out of the program and payroll deductions. In rare circumstances, employees may opt out of the program if their appointment meets the following criteria:

- Regularly work 20 hours per week or more for less than 26 continuous weeks; or
- Regularly work less than 20 hours per week for less than 175 days in a 12 month period.

Employees who do not meet the time-worked requirement should be aware of the option to waive coverage and complete the [PFL waiver form](#). The completed form should be submitted to the operating location's HR/Benefits office, who should review the appointment to determine if the employee is eligible to waive the benefit because their appointment will not meet the eligibility criterion for NYS PFL.

Within eight weeks of any change in the regular work schedule of an employee that requires the employee to continue working for 26 consecutive weeks or 175 days in 52 consecutive week period, any waiver is deemed automatically revoked.

If the waiver is revoked, by either the employee, or the RF due to a change in work schedule, the RF will take retroactive deductions for the period of time the employee was covered by the waiver, and that period of time counts towards eligibility for PFL.

Any denial of, or changes to, an employee's PFL waiver should be communicated to the employee by the operating location.

The RF may not force employees to opt out of the program. Employees may also revoke the waiver even if their schedule does not change.

The fully executed waiver must be kept on file as long as the employee is employed with the RF.

An employee who elects not to enter into a waiver shall have deductions from payroll for the duration of their employment.

See the [NYS Paid Family Leave Waiver - Process Help](#) for information regarding entering the PFL Waiver information into the Oracle Business System.

PFL and FMLA

The federal FMLA provides job protected leave for many of the same reasons as PFL. Because the New York State Paid Family Leave law shares many of the same requirements and definitions as the FMLA, when applicable, the two leave of absence programs will be applied concurrently, not consecutively, except during period of PTO Parental use.

PFL and Short-Term Disability

PFL will never run concurrently with Short-Term Disability benefits, which provide a benefit when employees need to miss work for their own illness or injury. Eligible employees can use a maximum of 26 weeks PFL and Short-Term Disability (regardless of whether income replacement benefits are received) in a 52-week period. This means that when an employee applies for PFL, HR administrators should count time away from work during an approved period of PFL and Disability in the prior 12 months when considering the amount of PFL available.

PFL and Worker's Compensation

Employees who are unable to work and are receiving income replacement benefits under worker's compensation are

not eligible to receive PFL concurrently.

PFL and PTO Parental

PTO Parental may not be charged during an approved period of Paid Family Leave.

Use of Accrued Paid Time Off (PTO)

An employee who takes PFL may elect to use accrued PTO for any part of the leave. The following table describes the PTO categories to be charged for various kinds of PFL.

Purpose of PFL	Accrued PTO to be Charged
Bond with a Child or Qualifying Exigency	Vacation, Personal, or Holiday
Care of a Family Member	Family Sick (Maximum of 30 days per calendar year), Vacation, Personal, or Holiday

Coordinating PTO and PFL Benefits

An employee may choose to remain on the RF payroll and use PTO at the FTE they were working prior to going on PFL until accruals are exhausted. For example, if an employee was working .50 FTE then they may charge up to .50 FTE; if working 1.0 FTE may charge up to 1.0 FTE, etc. Once accruals are exhausted, they may receive PFL benefits for the remainder of the PFL period.

An employee may instead elect to receive PFL benefits directly from the carrier beginning with the first day of the leave. If an employee chooses to do this, they may choose not to use accruals or to use supplemental accruals. If supplementing with accruals, refer to the section: Charging Accruals While Receiving Income Replacement Benefits for the calculation to determine the maximum accruals that can be charged.

PTO Accrual Credit – Reimbursement from the Carrier

If an employee chooses to use sick accruals, they should apply for PFL benefits. Once the claim is approved by the Carrier, the RF will be reimbursed the benefits from the carrier for the period during which accruals were paid to the employee. Once the RF receives reimbursement from the insurance carrier, Central Office restores the dollar amount of the reimbursement to the grant, and the campus location will need to credit the employee with the appropriate amount of accruals, based on the amount of reimbursement.

To determine the amount of accruals to be restored to the employee, calculate the percent of the employee's weekly wage that the PFL benefit equals. To determine this, use the following calculation: (PFL Benefit) / (Employee's Weekly Wage) = (percent of accruals to restore to employee).

Notifying Employees About PFL

Operating locations are required to post the notice to employees in a conspicuous place and provide employees with the Benefits Handbook or Employee Handbook containing PFL information. The posting is available in the [Posting Notices](#) procedure.

In addition, employees requesting leave must be given the [Employee Request for Leave](#) form and [Statement of Rights under PFL](#). The Statement of Rights under PFL must be provided to the employee within 5 business days after the employee's seventh consecutive day of absence due to leave or within five business days after the employer has received notice that the employee is absent for a reason qualifying under PFL, whichever is later.

Requesting Leave

Employees must comply with the RF requirements for requesting leave and provide enough information for the RF to

reasonably determine whether PFL may apply to the leave request. When practicable, employees must provide 30 days' notice when the leave is foreseeable.

When the need for leave is foreseeable less than 30 days in advance or is unforeseeable, employees must provide notice as soon as practicable under the circumstances. This will generally be the same or next business day after the need for the leave arises.

When an employee seeks leave for a PFL qualifying reason for the first time, the employee need not expressly assert PFL rights or even mention the PFL. If an employee later requests additional leave for the same qualifying condition, the employee must specifically reference either the qualifying reason for leave or the need for PFL.

Employees must provide the qualifying event and the anticipated timing and duration of the leave. In addition, the type of family leave must be identified when providing notice.

A claim for PFL shall be considered complete when an eligible employee submits a Request for Paid Family Leave and Certification. The following forms should be used to submit a claim for PFL:

Type of Leave	Forms
Bonding with a Child	PFL 1 and PFL 2 along with appropriate certification document(s) as listed on the forms
Care of a Seriously Ill Family Member	PFL 1, PFL 3 and PFL 4 along with appropriate certification document(s) as listed on the forms
Qualifying Exigency	PFL 1 and PFL 5 along with appropriate certification document(s) as listed on the forms

Employees must advise the RF and the carrier of the schedule for intermittent leave. When the dates are not specified on the Request for Paid Family Leave, employees must notify the RF of their need to take leave under PFL as soon as practicable before each PFL-qualifying absence. In these circumstances, the carrier or the RF may withhold payment pending submission of a request for payment together with the date(s) of leave.

Once a request for family leave is received from an employee, complete the employer information contained in Part B of the Request for Paid Family Leave (currently form PFL-1), or any other carrier-designated format, and return it to the employee within three business days. The carrier must pay or deny the claim within 18 days.

Payment shall be completed as soon as possible, but in no event more than 18 days from the date of the request. Employees must request payment for a previously unspecified day of family leave within thirty (30) days of the leave. See the [NYS Paid Family Leave: Claims Process](#) for more detailed information on submitting claims forms.

Designating PFL

If the reason for leave is a qualifying reason, and PFL documentation is provided, the operating location should allow leave during the process of submitting request forms to the carrier, contingent on the determination by the carrier. PFL is designated by the carrier with a notice to the employee and the RF.

If PFL Does Not Apply

If the leave is not approved by the carrier as PFL, then the operating location should determine if the leave is a qualifying FMLA leave. If the leave cannot be designated as FMLA or PFL, the employee may still be eligible for leave

under other provisions. For example, employees are eligible for six months of leave immediately following the birth or adoption of a child under the RF Child Care leave.

If no other leave protection applies, employees may request vacation, sick, holiday, or personal accruals which may or may not be granted by the operating location, depending on the employee's eligibility and accruals and the needs of the operating location.

PFL Records

The office responsible for RF Human Resources must retain the following documents for each leave request under PFL:

- Leave paperwork provided to the employee (Notice to Employees, Request for Leave Form)
- Signed request for leave form
- Signed employer response to the employee request for leave
- Request form(s) with completed employer portion
- Fully completed and signed request form if submitted to the RF and not directly to the carrier – (If form is submitted directly to the carrier, it should be noted in the file.)
- Dates and times used under NYS Paid Family Leave
- All correspondence, including email, and communication with the employee

Waiver forms must be maintained electronically in the Oracle business system and in the employee's file.

Confidentiality

Operating locations must maintain the confidentiality of medical records related to leave requests.

Continuation of Benefits while on PFL

While on PFL, RF health, dental, and vision insurance benefits in effect at the time of the leave will be continued for employees on approved leave. For information on how to obtain continuation of benefits, payment of premiums and reinstatement of benefits refer to the section on Continuation of Benefits Under FMLA. The same processes are followed for employees on PFL.

Definitions (PFL)

Definition of Benefit

The money payable to an eligible employee during family leave

Definition of Serious Health Condition of a Family Member

"Serious health condition" means an illness, injury, impairment, or physical or mental condition that involves:

- **inpatient care** in a hospital, hospice, or residential health care facility; or
- **continuing treatment or continuing supervision** by a health care provider

Examples of reasons for continuing treatment or supervision may include:

- Chronic serious health condition that continues over an extended period, requires periodic treatment visits, and may cause episodic periods of incapacity
- Long-term or permanent period of treatment that may not be effective and the family member is under continuing supervision
- Treatment or recovery from restorative surgery after an accident or other injury, or a condition that would likely result in a period of incapacity of more than three consecutive full days in the absence of treatment

- A period of more than three consecutive full days involving treatment two or more times by a health care provider or treatment on at least one occasion followed by continuing treatment under supervision

Definition of Leave for Adoption

An employee may take family leave before the actual placement or adoption of a child if an absence from work is required for the placement for adoption or foster care to proceed. For example, the employee may be required to attend counseling sessions, appear in court, consult with their attorney or the doctor(s) representing the birth parent, submit to a physical examination, or travel to another country to complete an adoption. The source of an adopted child (e.g., whether from a licensed placement agency or otherwise) is not a factor in determining eligibility for leave for this purpose.

Definition of Leave for Qualifying Exigency

Family leave benefits for an eligible employee that are based upon a qualifying exigency as interpreted under the Family and Medical Leave Act, 29 U.S.C.S 2612(a)(1)I and 29 C.F.R. 825.126(b)(1)-(9), arising out of the fact that the spouse, domestic partner, child, parent, or sibling of the employee is on active duty (or has been notified of an impending call or order to active duty) in the armed forces of the United States, shall be paid for no longer than the maximum periods of time as set out in section 204 of the Workers' Compensation Law.

Change History

Date	Summary of Change
July 29, 2026	Separated out PTO and Accrual Sections into the Paid Time Off and Accruals Handbook, incorporated Paid Prenatal Leave, Updates to definitions to be in line with the federal/NYS requirements, removing Quarantine of Minor Dependent Child, clarifying FMLA certification/approval sections, and separating out Appendices.
December 18, 2020	Incorporated NYC, Westchester and NYS sick leave law requirements into the RF Sick PTO plan. Created PTO plan Series III and Series IV Charts. Added information on new PTO elements.
September 1, 2020	Added FMLA Rights and Responsibilities Form Instructions and related FMLA Forms to Addendum C
July 20, 2020	Added new Juneteenth holiday
June 3, 2020	Updated NYS Voting Leave Law
May 17, 2019	Added Appendix on Short Term Disability Claims Process; update NYS Voting Leave Law; Adding Westchester Paid Sick Leave Act
February 6, 2019	Added language regarding organ and tissue donation to the definition of “serious health condition” under the New York Paid Family Leave law (NY PFL)
January 8, 2019	Remove old contact name at First Reliance